

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402430	CHAVEZ vs ORCHARD VILLAS APARTMENTS, LP	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

Premises liability is a form of negligence. The elements of a claim for injuries suffered by an invitee due to a dangerous condition on the premises (whether natural or artificial) are duty, breach, causation, and damages. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) As to the elements of duty and breach, a property owner has a duty to exercise ordinary care in using or maintaining his or her property to avoid exposing others to an unreasonable risk of injury; the failure to fulfill this duty is negligence. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) Liability may be premised on ownership, possession or control. (Id. at 1157-1158.) “Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (*Isaacs v. Huntington Memorial Hospital* (1985) 38 Cal.3d 112, 134.)

Defendants have presented evidence that they did not own, possess, or control the property on the date of the incident. (SUMF No. 6-9.) Without ownership, possession, or control of the property, Defendants cannot be liable for premises liability. Defendants have met their initial burden and since the motion is unopposed, Plaintiff has not offered any evidence to present a triable issue of material fact.

With respect to the negligence cause of action, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.) Defendants have presented evidence they did not owe Plaintiff a duty because they did not own, possess, or control the premises, golf cart, or Defendant Torres on the date of the incident. (SUMF Nos. 6-9, 10-16.) Defendants have met their initial burden and since the motion is unopposed, Plaintiff has not offered any evidence to present a triable issue of material fact.

With respect to the third cause of action, an employer can be held liable for the negligent hiring, supervision or retaining of an unfit employee if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal. App. 4th 1038.) Defendants have provided evidence that they did not hire, supervise, manage, retain, or control Defendant Torres at any point. (SUMF Nos. 12-13, 16.) Defendants have met their initial burden and since the motion is unopposed, Plaintiff has not offered any evidence to present a triable issue of material fact.

Defendants' (Frederick and 52nd LP and Housing Corporation of America) motion for summary judgment is granted. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 25, 2026, by 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2303815	ABLE IRON WORKS, A CALIFORNIA CORPORATION vs CULP CONSTRUCTION COMPANY, A UTAH CORPORATION	MOTION TO AMEND JUDGMENT

Tentative Ruling:

First, to the extent the arbitration stay has not been lifted, it is ordered lifted. A Final Award of Arbitrator dated June 17, 2025, was provided as an attachment to the Petition to Confirm Contractual Arbitration Award filed on July 21, 2025. (See Attachment to Petition to Confirm Contractual Arbitration Award filed July 21, 2025.) On August 18, 2025, the court confirmed the arbitration award made on June 17, 2025.

As provided in Code of Civil Procedure section 473, subdivision (d), in relevant part, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed[.]" (Code Civ. Proc., § 473, subd. (d).)

The judgment filed September 16, 2025, refers to the "real property owned by Defendants DJL Properties, LLC, a California limited liability company and leased by Lawrence Equipment, Inc., a California corporation" and as "the property mentioned in the complaint." The lands and premises directed to be sold are described as 1879 W. Lincoln Street, Banning, CA 92220.

Moving party seeks to have the judgment amended so as to reflect the legal description to include the property address, the assessor's parcel number, and information in reference to the maps books and page number in the Office of the County Recorder. However, moving party fails to provide any evidence in its motion or declaration in support of the motion what that APN and maps books and page number information is or any documentary evidence that such APN and information correspond to the address of 1879 W. Lincoln Street, Banning, CA 92220.

The hearing on the motion is continued to September 10, 2026, at 8:30 a.m. to allow moving party an opportunity to provide the APN and maps books and page number information that is being requested to be added to an amended judgment, as well as to provide documentary evidence showing that the APN and maps